

Q1: Write in your own words what you understand by the term the “rule of law”. In your response include a fictitious or real example of violation of the rule of law.

Ans: The term the “rule of law” means that all laws apply equally to all citizens and no one is above the law, not even the President of India. The law cannot discriminate between person on the basis of their religion, caste or gender.

Example of violation of the rule of law:

- Driving a two-wheeler with a helmet is a law. But we find people often violating this law.
- Bribing an official is a crime. But it has become a practice nowadays. It is a complete violation of law.

Q2: State two reasons why historians refute the claim that the British introduced the rule of law in India.

Ans: Historians refute the claim that the British introduced the rule of law in India on several grounds, two of which are given below:

- 1) The colonial rule was arbitrary. The British passed the Sedition Act in 1870. Under this Act any person protesting or criticising the British government could be arrested without trial.
- 2) The Indian nationalist played a prominent role in development of the legal sphere in British India.

Q3: Re read the story on how new laws on domestic violence got passed. Describe in your own words the different ways in which woman groups worked to make this happen?

Ans: Women’s groups worked hard and untiringly towards the passing of the new law on domestic violence in India. They used different forums like public protests, hearings, meetings with other organizations, press conferences and petitions to the government to introduce a new reformed bill on domestic violence to include

demands like monetary relief and protection against being evicted from the shared household. While earlier, domestic violence only entailed “injury or harm or threat of injury or harm” by an adult male against a woman. The Protection of Women from Domestic Violence Act 2005 extended to include physical, economic, sexual, verbal and emotional abuse.

Q4: Write in your own words what you understand by the following sentence on Page 44-45. “they also began fighting for greater equality and wanted to change the idea of law from a set of rules that they were forced to obey, to law as including ideas of justice.”

Ans: This line refers to the protests of Indian nationalists against the violation of the rule of law by British authorities. Indians were discriminated against in their own country by the British colonists and the Sedition Act of 1870 was the most prolific example of the breach of the rule of law. This Act was remonstrated against by Indian freedom fighters in favour of a more just set of rules based on ideals of equality.

Many Indians began to practice the legal profession and used it to demand and gain equal rights for all. Thus, Indians played a major role in the evolution of the rule of law during times of colonial rule.